

25STCV25030 25STCV25030

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Case Number: 25STCV25030 Hearing Date: June 23, 2026 Dept: 414

25STCV25030 Joseph Clemente v. Green Farms California, LLC, et al.

Tuesday,

June 23, 2026

[TENTATIVE]

ORDER DENYING PLAINTIFF'S MOTION TO COMPEL FURTHER RESPONSES TO REQUEST FOR

PRODUCTION OF DOCUMENTS (SET ONE) (8250)

I.

BACKGROUND

This

action arises from events surrounding Plaintiff's separation from employment

with Defendant, Green Farms California, LLC dba Worldwide Produce ("Green

Farms"). The first amended complaint alleges claims for breach of contract and

contract-related claims, retaliation in violation of the Fair Employment and

Housing Act and the Labor Code, and discrimination in violation of FEHA.

In

connection with Defendants' motion to compel arbitration, the court granted

Green Farms' motion to hold an evidentiary hearing to determine whether or not

Plaintiff revoked the arbitration clause in his employment agreement by

submitting a "revocation" form to Joshua Perez. (M.O. 12/4/25.) That hearing is

currently set for September 15, 2025. The motion to compel arbitration is set

to be heard the same day.

II.

MOTION

Plaintiff

moves to compel Defendant, Ares Capital Corporation ("Ares") to provide further

code-compliant, and verified responses, without objection, to Plaintiff's

Request for Production of Documents (Set One), and to produce responsive

documents within 10 days of the court's order. Plaintiff argues that the

central issue of Defendant's pending Motion to Compel Arbitration is whether Defendant,

as a non-signatory, has standing to enforce an arbitration agreement as an

agent or alter-ego of Green Farms. Plaintiff propounded a document request

specific to that issue.

Plaintiff

contends he met and conferred with Ares on March 2, 2026, wherein defense

counsel agreed to respond in good faith to all discovery requests that go to the formation of an agreement to arbitrate. Ares had no objection to that discovery. (Clemente, decl., Ex. A.) Among other things, Plaintiff contends the responses contained boilerplate objections and objections based on privilege, although a privilege log was not provided.

The court has considered the motion, opposition, reply, separate statements, supplemental reply, evidence, and request for judicial notice in support and in opposition to the motion.

III.

DISCUSSION

A

motion to compel further responses to a document request is proper where the requesting party believes the statement of compliance is incomplete or a representation of inability to comply is inadequate, incomplete, or evasive and/or an objection in the response is without merit or too general. (Code Civ. Proc., § 2031.310.) The moving party is required to submit a declaration attesting that the parties met and conferred prior to filing the motion.

In

its motion to compel arbitration, Defendants relied on a November 27, 2023, agreement signed by Kamran Rahimov, which is a name Plaintiff used at the time

and before being known as Joseph Clemente. (M.O. 12/4/25, p. 2.) Plaintiff contended he opted out of the arbitration agreement by a written letter dated December 1, 2023, that was not in the “form” provided by Defendant for opting out. That letter was addressed to Joshua Perez, Sr. of Human Resources for Worldwide Produce. (Id. p. 3.) Mr. Perez disputed that the document was delivered to him. (Id. p. 4.)

The

court set an evidentiary hearing specifically to determine whether the “revocation” form was delivered to Mr. Perez. (Id. p. 5.) The limited issue for the evidentiary hearing was not, as Plaintiff declares, whether Defendant has standing to enforce an arbitration agreement as an agent or alter-ego of Green Farms. (Clemente decl, ¶ 3.) Ares agreed to respond to requests on the issue of arbitrability. (Clemente decl., ¶ 4, Ex. A.) Plaintiff informed Defendant that the document requests were not merits-based discovery, but was limited to the issue of arbitrability, contract formation, and standing.

(Azarra decl. Ex. 3.)

Defendant

persuasively argues that upon its application to compel arbitration, the action is stayed pending the determination of that application. (Code Civ. Proc., § 1281.4.) The court limited the evidentiary hearing to the issue of Plaintiff’s “opt out” form

delivered to Mr. Perez, which Mr. Perez disputed receiving.

Plaintiff's

document requests go beyond the very limited scope of the narrow evidentiary

issue. Defendant's objections to the requests that exceed the scope of this

inquiry are well taken. Plaintiff requests general discovery of documents that appear

to be relevant to the relationship between "Managerial Assistance" and

Defendant Green Farms and other discovery that are not relevant to whether

Plaintiff opted out of the agreement to arbitrate. The discovery propounded by

Plaintiff goes to the issue of alter ego, facts surrounding Plaintiff's

termination, and operational policies of Green Farms among other fact discovery.

None of the six requests are relevant to whether Plaintiff opted out of the

arbitration agreement.

The

"relationship" discovery which Plaintiff asserts is discoverable is related to Ares'

argument in its motion to compel arbitration that it can invoke an arbitration

clause although it is a non-signatory to the agreement based on equitable

estoppel. (D's P&A, 16:11-15 filed 2/2/26.)

Defendant cited *Boucher v. Alliance Title Co., Inc.* (2005) 127 Cal.App.4th 262, 271 which stated that "under both federal and California

decisional authority, a nonsignatory defendant may invoke an arbitration clause

to compel a signatory plaintiff to arbitrate its claims when the causes of

action against the nonsignatory are “intimately founded in and intertwined” with the underlying contract obligations.” (Id.) This is not the subject of the scheduled evidentiary hearing.

Plaintiff

argues that it is entitled to discover facts asserted in the declaration of Ian Fitzgerald submitted by Defendant in support of its motion to compel. Mr. Fitzgerald, General Counsel and officer of Ares, consented to binding arbitration and asserted facts describing Aers’ operation. (Fitzgerald decl., filed 2/9/2026.) This is general fact discovery that exceeds the narrow issue articulated by the court.

IV.

CONCLUSION

Fact

discovery is premature at this stage. The court denies Plaintiff’s request for judicial notice of Ares’ public filings with the Securities and Exchange Commission, which is irrelevant. Accordingly, Plaintiff’s motion is DENIED.